

for the time being as aforesaid, the said vice-chancellor for the time being has by custom of and in the said university from time whereof the memory of man is not to the contrary there used and approved, heard and examined all such women so apprehended and arrested as aforesaid, and, upon being satisfied that such women have then been proved to be loose or disorderly women, or have been found within the limits and precincts aforesaid keeping company with any of the scholars aforesaid, in such manner and under such circumstances as aforesaid, have, whenever to them had seemed meet, caused such women to be punished by imprisonment of their bodies for such reasonable time, and in such convenient prison, and subject to such usual and reasonable discipline, as to the said vice-chancellor for the time being hath seemed meet: That, before and at the time of the alleged grievances, and after the passing of the said act and of the Cambridge Award Act, [527] 1856 (19 & 20 Vict. c. xvii.), one Thomas Samuel Woollaston lawfully held and exercised the said office of proctor of the said university, being the office mentioned in the said last-mentioned act: That the said Thomas Samuel Woollaston, being such proctor as aforesaid, shortly before the committing of the alleged grievances, found the plaintiff within the limits and precincts aforesaid, in one of such his visits as aforesaid: and that the plaintiff then and until after the committing of the alleged grievances was a woman who upon reasonable grounds was suspected by the said Thomas Samuel Woollaston to be a loose and disorderly woman, and who then was found within the limits and precincts aforesaid, keeping company with divers scholars of the said university in such manner and under such circumstances as that she the plaintiff then and until after the committing of the alleged grievances was on reasonable grounds by the said Thomas Samuel Woollaston suspected of evil: Whereupon the said Thomas Samuel Woollaston, so being such proctor as aforesaid, before the committing of the alleged grievances, had arrested and apprehended the plaintiff in order to take her and had then taken her before the defendant, so being such vice-chancellor as aforesaid, to be dealt with according to law; and thereupon the defendant, so being such vice-chancellor as aforesaid, did then and there hear and examine the plaintiff, and was thereupon satisfied that the plaintiff then was a loose and disorderly woman, and then had been found by the said Thomas Samuel Woollaston, so being such proctor as aforesaid, within the limits and precincts aforesaid, keeping company with divers scholars of the said university, for idle, disorderly, and immoral purposes, and did then cause the plaintiff to be punished by imprisonment of her body for a reasonable time in that behalf, to wit, for five days, in the place of confinement [528]—in the declaration mentioned, being a fit and convenient place in that behalf: And that the compelling the plaintiff to take off the clothes as in the declaration mentioned, and compelling her to put on the said other clothes, and to wear the same, and to work and labour, as in the declaration mentioned, then were and each of them was a part of the reasonable discipline of the said place of confinement then used and approved of by the defendant, so being such vice-chancellor as aforesaid; which were the several grievances in the declaration alleged.

Thirdly,—that the chancellor, masters, and scholars of the university of Cambridge, at the time of the granting of the letters-patent thereafter in part set forth, were a body politic, and had succession as in the introductory part of the second plea mentioned, and that Elizabeth then Queen of England, &c., on the 26th day of April in the third year of her reign, by Her Majesty's letters-patent sealed with the great seal of England, bearing date the same day and year, did, for herself, her heirs and successors, grant to the then chancellor, masters, and scholars of the said university and their successors, that it should be lawful for the aforesaid chancellor, masters, and scholars, and their successors, by themselves or by their deputies, officers, servants, and ministers, or by any one or more of them, from time to time and at all times, as well by day as by night, at their good pleasure, from thenceforth to make scrutiny, search, and inquiry as well by night as by day, as often and whensoever it should seem to them expedient, in the aforesaid town of Cambridge, and in the suburbs of the same, and other places in the said letters patent mentioned, of and for all common women, vagabonds, and other persons suspected of evil coming to or assembling at the aforesaid town and suburbs, and other [529] places, or any of them, and all and every the persons which the same chancellor, masters, and scholars, or their successors, or their deputies, officers, servants, and ministers, or any one or more of them, upon any such scrutiny, search, or inquiry, should find guilty or suspected of evil, to punish by imprisonment of their bodies, banishment, and otherwise, as to the chancellor of the